

Solicitation 407973-2

Title **Fuel Tank Demolitions - ABTP & VIP**
Due Date **27-FEB-2026 14:30:00** Award Date **Not Specified**
Time Zone **Eastern Time**

Please submit your response online only:

Organization **HRSD**
Purchaser **Conneen, Katelyn**
Phone **7574607344**
Email **kcollins@hrsd.com**

Responses shall only be accepted online through Hampton Roads Sanitation District 's (HRSD) Oracle ERP system "iSupplier Portal" by the due date and time specified. Late responses and other types of responses shall not be accepted.

Table of Contents

1 Header Information.....	3
1.1 General Information.....	3
1.2 Terms.....	3
1.3 Requirements.....	3
1.4 Attachments.....	15
2 Price Schedule.....	17
2.1 Line Information.....	17
2.2 Line Details.....	17
2.2.1 Line 1.....	17
2.2.2 Line 2.....	17

1 Header Information

1.1 General Information

Title **Fuel Tank Demolitions - ABTP & VIP**
 Description **Contractor shall furnish all material, labor, equipment, and supplies required for the demolition of fuel tanks at HRSD's Army Base Treatment Plant, Nansmond Treatment Plant and Virginia Initiative Plant, in accordance with the attached specifications, line item descriptions, terms and conditions.**
 Due Date **27-FEB-2026 14:30:00** Award Date **Not Specified**
 Purchaser **Conneen, Katelyn**
 Email **kcollins@hrsd.com**

1.2 Terms

Ship-To Address	Multiple (See Below)	Bill-To Address	Accounts Payable
	See Below		PO BOX 5915
	Virginia Beach, VA 23455		Virginia Beach, VA 23471-0915
	United States		United States
Payment Terms	Net 30	Carrier	Best Way
FOB	Destination	Freight Terms	Freight Prepaid

1.3 Requirements

Bidders/Offerors Certification By the submission of this online response, the Bidder/Offeror is duly authorized to bind the company and is familiar with all aspects of the bid/proposal and fully meets the requirements found in this solicitation. Circle one from the response values below: Yes
General Information Number of year's business has been in operation? Value Type Numeric Value only Provide your answer below
Number of Employees? Value Type Numeric Value only Provide your answer below
Number of year's experience providing/servicing same or similar goods/services? Value Type Numeric Value only Provide your answer below

General Information
Number of employees of this business who are certified for servicing the equipment referenced in this solicitation? Value Type Numeric Value only Provide your answer below
Number of service locations for this business? Value Type Numeric Value only Provide your answer below
Addresses of these service locations if applicable (type here or attach copy of the address list to this online response) Provide your answer below
License Requirements
Contractor Name (if not applicable enter N/A in the field) Provide your answer below
Subcontractor (if applicable otherwise enter N/A in the field) Provide your answer below

License Requirements
For Construction Services please select license class type: Circle one from the response values below: Class A Class B Class C N/A
Virginia Contractor Number Value Type Numeric Value only Provide your answer below
Specialty if Applicable (otherwise type N/A) Provide your answer below
Reference - 1
1 - Name of Firm Provide your answer below
1 - Address Provide your answer below
1 - Contact Name Provide your answer below

Reference - 1
1 - Title Provide your answer below
1 - Phone Provide your answer below
1 - Email Provide your answer below
1 - Describe the goods and/or services that were provided. Provide your answer below
1 - State the start and completion date of services provided. Provide your answer below
Reference - 2
2 - Name of Firm Provide your answer below

Reference - 2
2 - Address Provide your answer below
2 - Contact Name Provide your answer below
2 - Title Provide your answer below
2 - Phone Provide your answer below
2 - Email Provide your answer below
2 - Describe the goods and/or services that were provided. Provide your answer below

Reference - 2
2 - State the start and completion date of services provided. Provide your answer below
Reference - 3
3 - Name of Firm Provide your answer below
3 - Address Provide your answer below
3 - Contact Name Provide your answer below
3 - Phone Provide your answer below
3 - Email Provide your answer below
3 - Describe goods and/or services that were provided.

Reference - 3
..... Provide your answer below
3 - State start and completion dates for services provided. Provide your answer below
Reference - 4
4 - Name of Firm Provide your answer below
4 - Address Provide your answer below
4 - Contact Name Provide your answer below
4 - Title Provide your answer below
4 - Phone

Reference - 4
..... Provide your answer below
4 - Email Provide your answer below
4 - Describe goods and/or services that were provided. Provide your answer below
4 - State the start and completion date of services provided. Provide your answer below
Reference - 5
5 - Name of Firm Provide your answer below
5 - Address Provide your answer below
5 - Contact Name

Reference - 5
..... Provide your answer below
5 - Title Provide your answer below
5 - Phone Provide your answer below
5 - Email Provide your answer below
5 - Describe the goods and/or services provided. Provide your answer below
5 - State the start and completion date of services provided. Provide your answer below
Proof of Authority to Transact Business in Virginia Pursuant to Virginia Code 2.2-4311.2, a Bidder/Offeror must provide their State Corporation Commission HRSD Procurement Office

Proof of Authority to Transact Business in Virginia (SCC) number on the below line otherwise you must state why your firm is not required to have a (SCC) number. Any bidder/offeror described herein that fails to provide the required information shall not receive an award unless a waiver of this requirement is granted by the Procurement Office. If this bid/proposal for goods or services is accepted by HRSD, the undersigned agrees that the requirements of the Code of Virginia Section 2.2-4311.2 have been met. Please complete the following by providing the requested information. Type No Response Required Please supply your company's Identification Number that has been issued by the State Corporation Commission (SCC) if you do not have one please enter N/A and complete the below questions. Provide your answer below Bidder/Offeror is not a corporation, limited liability company, limited partnership, registered limited liability partnership, or business trust. Circle one from the response values below: Yes N/A Bidder/Offeror is an out-of-state business entity that does not regularly and continuously maintain as part of its ordinary and customary business any employees, agents, offices, facilities, or inventories in Virginia(not counting any employees or agents in Virginia who merely solicit orders that require acceptance outside Virginia before they become contracts, and not counting any incidental presence of the Bidder/Offeror in Virginia that is needed in order to assemble, maintain, and repair goods in accordance with the contracts by which such goods were sold and shipped into Virginia from Bidder/Offeror's out-of-state location. Circle one from the response values below: Yes N/A Bidder/Offeror is an out-of-state business entity that is including with this bid/proposal an opinion of legal counsel which accurately and completely discloses the undersigned Bidder's/Offeror's current contracts with Virginia and describes why those contracts do not constitute the transaction of business in Virginia within the meaning of 13.1-757 or other similar provisions in Titles 13.1 or 50 of the Code of Virginia. Attach opinion to your response for this solicitation. Circle one from the response values below: Yes N/A Bidder/Offeror does not have an Identification Number issued to it by the SCC and such Bidder/Offeror is not required to be authorized to transact business in Virginia by the SCC. Please state the reason(s) or enter N/A if this does not apply to your company. Provide your answer below
--

Proof of Authority to Transact Business in Virginia Answer YES if you have not completed any of the foregoing options but currently have pending before the Virginia SCC an application for authority to transact business in the Commonwealth of Virginia and wish to be considered for a waiver to allow you to submit the SCC identification number after the due date for bids/proposals(HRSD reserves the right to determine in its sole discretion whether to allow such waiver). Circle one from the response values below: Yes N/A
Provide Legal Name of Company (as listed on W-9) Provide your answer below
Submittal Requirements Have you attached copies of your employees Asbestos and/or Lead Training Certifications for all employees assigned to the project if applicable? Circle one from the response values below: Yes N/A No
Have you attached a copy of your audited financial statement? Circle one from the response values below: Yes No N/A
Have you attached a copy of your authorized manufacturer's distributor letter? Circle one from the response values below: Yes No N/A
Have you attached a copy of your authorized/qualified manufacturer's applicator letter? Circle one from the response values below: Yes No N/A
Have you attached a copy of your authorized support provider/reseller letter? Circle one from the response values below: No Not Applicable Yes
Have you attached a copy of your bid deposit? Your bid shall be accompanied by a bid bond or guarantee of five percent (5%) of the amount of the bid, which shall be a certified check, cash escrow or a bid bond payable to HRSD. If you are submitting a certified check it must be mailed or delivered to HRSD Attn: Procurement, 1434 Air Rail Ave., Virginia Beach, VA 23455. All other forms of deposit shall be included with your online submittal. If not your bid will be deemed non-responsive. This requirement only applies to bids in excess of \$100,000.00.

Submittal Requirements
..... Circle one from the response values below: Yes No
Have you attached a copy of your Certificate of Insurance? (Sample copy shall be acceptable with submittal) Circle one from the response values below: Yes No N/A
Have you attached a copy of your proposed delivery schedule? Circle one from the response values below: Yes No
Have you attached your drawings? Circle one from the response values below: Yes No N/A
Have you included information about your company's experience in providing the goods/services described herein? Circle one from the response values below: Yes No N/A
Have you included the names, qualifications and experience of personnel to be assigned to the project? Circle one from the response values below: Yes No N/A
Have you attached copies of the required permit/s required for this solicitation? Circle one from the response values below: No Not Applicable Yes
Have you attached copies of your Pesticide Certificate and Fertilizer/Lime Permit/s? Circle one from the response values below: Yes No
Have you attached copies of your detailed product literature/documentation? Circle one from the response values below: Yes No N/A
Have you provided resumes of your staff that will be assigned to this project? Circle one from the response values below:

Submittal Requirements
Yes No N/A
Have you attached the Safety Data Sheet/s for each chemical and/or compound offered in your response? Circle one from the response values below: Yes No N/A
Have you included a Schedule of Values with your response? (The schedule of values shall form the basis for payments to the contractor, upon approval by HRSD.) Circle one from the response values below: Yes No N/A
Are you planning on using Subcontractor/s for this work? No portion of the work shall be subcontracted without prior written consent of the Procurement Office. If you are using subcontractors, you must provide name/s, qualification/s, and experience of the proposed subcontractor with your response to this solicitation. Circle one from the response values below: Yes No
Have you attached a copy of your Surety Company Certification Letter? Circle one from the response values below: Yes No N/A
Have you attached a copy of your proposed work schedule? Circle one from the response values below: Yes No N/A
Have you attached a copy of your warranty statement? Circle one from the response values below: Yes No N/A
Have you attached a copy of your TWIC and NIT cards? The successful Bidder/Offeror will be required to obtain Transportation Worker Identity Credentials (TWIC) and Norfolk International Terminals (NIT) cards prior to the start of work. This is a mandatory requirement for access to HRSD's Army Base Treatment Plant Only. If your company already has TWIC and NIT cards, provide a copy with your submittal. Circle one from the response values below: NO YES

1.4 Attachments

Name	Data Type	Description
ABTP PRICING PAGE	File	TO BE SUBMITTED ONLINE

Name	Data Type	Description
VIP Exhibits	File	VIP Exhibits
VIP PRICING PAGE	File	TO BE SUBMITTED ONLINE
Solicitation Viewing Instructions	Short Text	In order to view this solicitation and all associated documents you must log into HRSD's Online Procurement System.
ABTP Exhibits	File	ABTP Exhibits
ABTP Scope of Work	File	ABTP Scope of Work
VIP Scope of Work	File	VIP Scope of Work

2 Price Schedule

2.1 Line Information

Line	Item, Rev	Target Quantity (N/A)	Unit	Unit Price	Amount	Promised Date
1 ABTP Fuel Tank Demolition (LUMP SUM FROM PRICING PAGE)						
2 VIP Fuel Tank Demolition (LUMP SUM FROM PRICING PAGE)						

2.2 Line Details

2.2.1 Line 1 ABTP Fuel Tank Demolition (LUMP SUM FROM PRICING PAGE)

Need-By Date **Not Specified**

NIGP Code **Not Specified**
(CURRENCY_COD
E=USD)

Ship-To Address **ABTP**
401 Lagoon Rd
Norfolk, VA 23505
United States

2.2.2 Line 2 VIP Fuel Tank Demolition (LUMP SUM FROM PRICING PAGE)

Need-By Date **Not Specified**

NIGP Code **Not Specified**
(CURRENCY_COD
E=USD)

Ship-To Address **VIP**
4201 Powhatan Avenue
Norfolk, VA 23508
United States

Terms and Conditions

Table of Contents

Terms and Conditions.....	20
I. PURPOSE	20
A. Purpose	20
II. SCOPE OF WORK/DESCRIPTION OF ITEMS	20
A. Scope of Work/Description of Items	20
III. PRE-BID CONFERENCE/INSPECTION OF JOBSITE	20
A. Pre-Bid Conference/Inspection of Jobsite	20
IV. SOLICITATION INSTRUCTIONS	20
A. Instructions to Bidders	21
B. Solicitation Inquiries	21
C. Submittal of Responses	21
D. Technical Assistance	21
E. Receipt and Opening of Solicitations	21
V. GENERAL TERMS AND CONDITIONS	21
A. Announcement of Award	21
B. Anti-Discrimination	22
C. Anti-Trust	23
D. Applicable Law and Courts	23
E. Assignment of Contract	23
F. Authorization to Transact Business in Virginia	23
G. Availability of Funds	23
H. Changes	23
I. Clarification of Terms	24
J. Contract Documents	24
K. Debarment Status	24
L. Default	24
M. Discounts	25
N. Disputes	25
O. Drug-Free Workplace	25
P. Ethics in Public Contracting	25
Q. Faith-based Organizations	25
R. Forced or Indentured Child Labor	26
S. HRSD Procurement Policy	26
T. Immigration Reform and Control Act of 1986	26
U. Indemnification	26
V. Informality	26
W. Invoices/Payment	26
X. Mandatory Use of HRSD Form and Terms and Conditions	27
Y. Minority Owned Businesses Subcontracting and Reporting	27
Z. Non-Publicity	28
AA. Precedence of Terms	28
AB. Qualifications of Bidders/Offerors	28
AC. Taxes	28

AD. Testing/Inspection	28
AE. Title VI Civil Rights Obligations	28
AF. Withdrawal or Modification of Responses Prior to Due Date	29
VI. SPECIAL TERMS AND CONDITIONS	30
A. Award of Contract	30
B. Bid Acceptance Period	30
C. Bid Prices	30
D. Confidentiality	30
E. Contractor Experience	30
F. Contractor Registration	30
G. Contractor's Title to Materials	31
H. Definitions	31
I. Delivery and Storage	31
J. Errors in Bids	32
K. Final Inspection	32
L. Hazardous Chemical Communication Program	32
M. Insurance	32
N. Laws and Regulations	33
O. Maintenance Manuals	34
P. Negotiation with the Lowest Bidder	34
Q. Preparation and Submission of Bids	34
R. Prime Contractor Responsibilities	35
S. Protection of Persons and Property	35
T. References	35
U. Service Information	35
V. Silence of Specifications	36
W. Subcontracts	36
X. Superintendence by Contractor	36
Y. Transportation Worker Identity Credentials and Virginia Port Authority Requirements	36
Z. Use of Contract by Other Public Bodies	36
AA. Use of HRSD Facilities	37
AB. Use of Premises and Removal of Debris	37
AC. Work Hours	38
AD. Work Schedule	38
AE. Work Site Damages	38
VII. METHOD OF PAYMENT	38
A. Method of Payment	38
VIII. PRICING	39
A. Pricing	39

Terms and Conditions

I. PURPOSE

A. Purpose

The purpose of this Invitation for Bid, IFB #407973, is to solicit sealed bids to establish a contract through competitive bidding for fuel tank demolitions.

II. SCOPE OF WORK/DESCRIPTION OF ITEMS

A. Scope of Work/Description of Items

The successful Contractor shall furnish all labor, equipment, materials, and supervision required fuel tank demolitions for various HRSD locations in accordance with the attached specifications.

III. PRE-BID CONFERENCE/INSPECTION OF JOBSITE

A. Pre-Bid Conference/Inspection of Jobsite

A pre-bid conference will be held at January 21, 2026 at 10:00 a.m. at Army Base Treatment Plant located at 401 Lagoon Rd, Norfolk, VA 23505. The purpose of this conference is to allow potential Bidders an opportunity to present questions, view the job site/s and take measurements, if applicable, and obtain clarification relative to any facet of this solicitation.

A hard hat and safety glasses may be required during the site visit. HRSD cannot guarantee the availability of additional hard hats and safety glasses. If you do not have a hard hat and safety glasses you will not be permitted on the site. Please bring a hard hat and safety glasses with you if you have them.

While attendance at this conference will not be a prerequisite to submitting a bid, Bidders who intend to submit a bid are encouraged to attend the conference/job site visit/s at the specified time and date. HRSD will not reschedule additional pre-bid conferences/job site visit/s.

Bring a copy of the solicitation with you. Any changes resulting from this conference will be issued through an amendment on HRSD's online Oracle ERP system from the HRSD Procurement Office.

The Bidder's online submittal constitutes certification that he/she is aware of the pre-bid conference and job site visit/s, if applicable, and is aware of the conditions under which the work must be accomplished. Claims, as a result of failure to attend the pre-bid conference and job site visit/s, if applicable, will not be considered by HRSD.

IV. SOLICITATION INSTRUCTIONS

A. Instructions to Bidders

This is an HRSD Invitation for Bid solicitation for sealed bids to establish a contract through competitive bidding for the requested goods/services. THIS IS NOT AN ORDER.

B. Solicitation Inquiries

Please direct all questions concerning this solicitation to the HRSD Procurement Office Purchaser indicated in the solicitation. Direct contact with HRSD departments, other than the Procurement Office, concerning this solicitation is prohibited. HRSD disclaims any responsibility for documents distributed by other parties. Any changes to this solicitation shall be issued from HRSD's Procurement Office through HRSD's Online Oracle ERP system.

C. Submittal of Responses

HRSD only accepts responses submitted online through HRSD's Online Oracle ERP system. Failure to submit a response through HRSD's Online Oracle ERP system will be rejected by HRSD. It is the responsibility of the Bidder to assure that their response is submitted in HRSD's Online Oracle ERP system prior to the due date and time. All times listed in the HRSD solicitation are Eastern Standard Times. Late responses shall not be accepted. HRSD shall not be responsible for late or lost responses due to an improper online submittal by Bidder.

D. Technical Assistance

If you experience difficulties logging into your account or using HRSD's Oracle ERP system, please contact the help desk at erphelp@hrsd.com for assistance.

E. Receipt and Opening of Solicitations

Online responses received will be opened at the HRSD Department of Finance Procurement Office, 1434 Air Rail Ave., Virginia Beach, VA 23455 at the time stated in the solicitation. For Request for Quote and Invitation for Bid, Bidders' names and prices will be made public for the information of Bidders and others interested who may be present either in person or by representative. For Request for Proposal and Request for Technical Proposals, only the Offerors' names shall be made public. The official or agent of HRSD, whose duty it is to open them, will decide when the specified time has arrived. No responsibility will be attached to any official or agent for the premature opening of a response not properly submitted. No decisions relating to an award of a contract shall be made at the solicitation opening.

V. GENERAL TERMS AND CONDITIONS

A. Announcement of Award

Upon the award or the announcement of the decision to award a contract as a result of this solicitation, results will be available on HRSD'S web site (<https://erpprodext.hrsd.com:4443>). You must log in to the system to view this information otherwise you can find a list of all awards located on HRSD's website under Procurement Public

Notices at <https://www.hrsd.com/bids-and-rfps>.

B. Anti-Discrimination

By submitting your response, Bidders/Offerors certify to HRSD that they will conform to the provisions of the Federal Civil Rights Act of 1964, as amended, as well as the Virginia Fair Employment Contracting Act of 1975, as amended, where applicable, the Virginians With Disabilities Act, the Americans With Disabilities Act and § 2.2-4311 of the Virginia Public Procurement Act (VPPA). If the award is made to a faith-based organization, the organization shall not discriminate against any recipient of goods, services, or disbursements made pursuant to the contract on the basis of the recipient's religion, religious belief, refusal to participate in a religious practice, or on the basis of race, age, color, gender sexual orientation, gender identity, or national origin and shall be subject to the same rules as other organizations that contract with HRSD to account for the use of the funds provided; however, if the faith-based organization segregates HRSD funds into separate accounts, only the accounts and programs funded with HRSD funds shall be subject to audit by HRSD. (Code of Virginia, § 2.2-4343.1E).

In every contract over \$10,000 the provisions in 1. and 2. below apply:

1. During the performance of this contract, the contractor agrees as follows:
 - a. The contractor will not discriminate against any employee or applicant for employment because of race, religion, color, sex, sexual orientation, gender identity, national origin, age, disability, veteran status, status as military family, or any other basis prohibited by state law relating to discrimination in employment, except where there is a bona fide occupational qualification reasonably necessary to the normal operation of the contractor. The contractor agrees to post in conspicuous places available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause.
 - b. The contractor, in all solicitations or advertisements for employees placed by or on behalf of the contractor, will state that such contractor is an equal opportunity employer.
 - c. Notices, advertisements and solicitations placed in accordance with federal law, rules or regulations shall be deemed sufficient for the purpose of meeting the requirements of this section.
 - d. If the contractor employs more than five employees, the contractor shall (i) provide annual training on the contractor's sexual harassment policy to all supervisors and employees providing services at HRSD and (ii) post the contractor's sexual harassment policy in (a) a conspicuous public place in each building located in the Commonwealth that the contractor owns or leases for business purposes and (b) the contractor's employee handbook.
 - e. The requirements of these provisions 1. and 2. are a material part of the contract. If the Contractor violates one of these provisions, HRSD may terminate the affected part of this contract for breach, or at its option, the whole contract. Violation of one of these provisions may also result in debarment from State contracting regardless of whether the specific contract is terminated.
 - f. In accordance with Executive Order 61 (2017), a prohibition on discrimination by the contractor, in its employment practices, subcontracting practices, and delivery of goods or services, on the basis of

race, sex, color, national origin, religion, sexual orientation, gender identity, age, political affiliation, disability, or veteran status, is hereby incorporated in this contract.

2. The contractor will include the provisions of 1. above in every subcontract or purchase order over \$10,000, so that the provisions will be binding upon each subcontractor or supplier.

C. Anti-Trust

By entering into a contract, the Contractor conveys, sells, assigns, and transfers to HRSD all rights, title and interest in and to all causes of the action it may now have or hereafter acquire under the antitrust laws of the United States and the Commonwealth of Virginia, relating to the particular goods or services purchased or acquired by HRSD under said contract.

D. Applicable Law and Courts

This solicitation and any resulting contract shall be governed in all respects by the laws of the Commonwealth of Virginia, without regard to its choice of law provisions, and any litigation with respect thereto shall be brought in the circuit courts of the Commonwealth. HRSD and the contractor are encouraged to resolve any issues in controversy arising from the award of the contract or any contractual dispute using Alternative Dispute Resolution (ADR) procedures (Code of Virginia, § 2.2-4366). The contractor shall comply with all applicable federal, state and local laws, rules and regulations.

E. Assignment of Contract

A contract shall not be assignable by the Contractor in whole or in part without the written consent of HRSD.

F. Authorization to Transact Business in Virginia

By submitting a response to HRSD a contractor organized as a stock or non-stock corporation, limited liability company, business trust, or limited partnership or registered as a registered limited liability partnership shall be authorized to transact business in the Commonwealth as a domestic or foreign business entity if so required by Title 13.1 or Title 50 of the *Code of Virginia* or as otherwise required by law. Any business entity described above that enters into a contract with a public body pursuant to the *Virginia Public Procurement Act* shall not allow its existence to lapse or its certificate of authority or registration to transact business in the Commonwealth, if so required under Title 13.1 or Title 50, to be revoked or cancelled at any time during the term of the contract. A public body may void any contract with a business entity if the business entity fails to remain in compliance with the provisions of this section.

G. Availability of Funds

It is understood and agreed between the parties herein that HRSD shall be bound hereunder only to the extent of the funds available or which may hereafter become available for the purpose of this agreement.

H. Changes

By written notice to the Contractor, HRSD may from time to time make changes, within the general scope of the contract, in the goods or services to be provided by the Contractor, the method of shipment or packing, or the place of delivery or the place of performance. The Contractor shall promptly comply with the notice and shall make all subsequent shipments of goods and performance of services in conformity to the notice. If any such change causes an increase or decrease in the Contractor's cost of performance or the time required for performance, an equitable adjustment in the contract price and/or the time allowed for performance of the contract shall be negotiated and the contract modified accordingly by written supplemental agreement. Any claim by the Contractor for adjustment under this clause must be asserted by written notice to the purchasing agent within (30) days from the date of receipt by the Contractor of the change notice. If the parties fail to agree to an adjustment, the question of an increase or decrease in the contract price or time allowed for performance shall be resolved in accordance with the procedures for resolving disputes provided by the disputes clause of the contract. Neither the existence of a claim, a dispute, submission of the dispute to HRSD resolution process, litigation or any portion of this provision or changes shall excuse the Contractor from promptly proceeding with performance of the contract as changed by the notice.

I. Clarification of Terms

It shall be the responsibility of the Bidders/Offerors to examine the entire contents of the solicitation. If any prospective Bidder/Offeror has questions about the specifications or other solicitation documents, the prospective Bidder/Offeror should contact the Procurement Official whose name appears on the face of the solicitation prior to the due date. Any revisions to the solicitation will be made only by an amendment issued by the Procurement Office.

J. Contract Documents

The Contract entered into by the parties shall consist of the online submittal by the Contractor through HRSD's online procurement system, HRSD's Purchase Order, General and Special Terms and Conditions, the Specifications with drawings, if any, including all modifications thereof, all of which shall be referred to collectively as the Contract Documents.

Bidders are advised that HRSD does not sign standard contract forms which may be used by the Bidder. Your online submittal certifies the Bidder is an agent or officer authorized to bind the company to the terms and conditions of this solicitation.

K. Debarment Status

By submitting their response, Bidders/Offerors certify that they are not currently debarred by HRSD or the Commonwealth of Virginia from submitting responses on contracts for the type of goods and/or services covered by this solicitation, nor are they an agent of any person or entity that is currently so debarred.

L. Default

In case of failure to deliver goods or services in accordance with the contract terms and conditions, HRSD, after due oral and written notice, may procure them from other sources and hold the Contractor responsible for any

resulting additional purchase and administrative costs. This remedy shall be in addition to any other remedies, which HRSD may have.

M. Discounts

Payment discounts shall be considered at time of payment but will not be an award factor.

N. Disputes

Contractual claims, whether for money or other relief, shall be submitted in writing to the issuing procurement office no later than sixty (60) days after final payment; however, written notice of the contractor's intention to file such claim shall have been given at the time of the occurrence of beginning of the work upon which the claim is based. Nothing herein shall preclude a contractor from requiring submission of an invoice for final payment within a certain time after completion and acceptance of the work or acceptance of the goods. Pending claims shall not delay payment of amounts agreed due in the final payments (Code of Virginia). A contractor may not institute legal action prior to receipt of the procurement office's decision on the claim, unless that office fails to render such decision within thirty (30) days. The decision of the procurement office shall be final and conclusive unless the contractor, within six months of the date of the final decision on the claim, institutes legal action as provided in the Code of Virginia.

O. Drug-Free Workplace

During the performance of this contract, the contractor agrees to (i) provide a drug-free workplace for the contractor's employees; (ii) post in conspicuous places, available to employees and applicants for employment, a statement notifying employees that the unlawful manufacture, sale, distribution, dispensation, possession, or use of a controlled substance or marijuana is prohibited in the contractor's workplace and specifying the actions that will be taken against employees for violations of such prohibition; (iii) state in all solicitations or advertisements for employees placed by or on behalf of the contractor that the contractor maintains a drug-free workplace; and (iv) include the provisions of the foregoing clauses in every subcontract or purchase order of over \$10,000, so that the provisions will be binding upon each subcontractor or contractor.

P. Ethics in Public Contracting

By submitting their response, all Bidders/Offerors certify that their responses are made without collusion or fraud and that they have not offered or received any kickbacks or inducement from any other Bidder/Offeror, supplier, manufacturer or subcontractor in connection with their solicitation/proposal, and that they have not conferred on any public employee having official responsibility for this procurement transaction any payment, loan, subscription, advance, deposit of money, services or anything of more than nominal value, present or promised unless consideration of substantially equal or greater value was exchanged.

Q. Faith-based Organizations

HRSD does not and shall not discriminate against faith-based organizations.

R. Forced or Indentured Child Labor

During the performance of this contract the use of forced or indentured child labor is prohibited. Any Prime Contractor shall include such prohibition in every subcontract that exceeds \$10,000 and shall be binding upon each subcontractor or supplier.

For the purposes of this section, "forced or indentured child labor" means all work or service exacted from any person younger than 18 years of age under the menace of any penalty for the nonperformance of such work or service and for which such person does not offer himself voluntarily or performed by any person younger than 18 years of age pursuant to a contract the enforcement of which can be accomplished by process or penalties.

S. HRSD Procurement Policy

This solicitation is subject to the provisions of HRSD's Procurement Policy, and any revisions thereto, which are hereby incorporated into this contract in their entirety. The policy is available at <https://www.hrsd.com/sites/default/files/assets/Documents/pdfs/CommissionPolicies/ProcurementPolicy2025.pdf>

T. Immigration Reform and Control Act of 1986

By submitting their response, Bidders/Offerors certify that they do not and will not during the performance of this contract employ illegal alien workers or otherwise violate the provisions of the federal Immigration Reform and Control Act of 1986.

U. Indemnification

Contractor agrees to indemnify, defend and hold harmless HRSD, its officers, agents, and employees from any claims, damages and actions of any kind or nature, whether at law or in equity, arising from or caused by the use of any materials, goods, or equipment of any kind or nature furnished by the Contractor/any services of any kind or nature furnished by the Contractor, provided that such liability is not attributable to the sole negligence of the using agency or to failure of the using agency to use the materials, goods, or equipment in the manner already and permanently described by the Contractor on the materials, goods, or equipment delivered.

V. Informality

HRSD reserves the right to waive informalities. Informality is a minor defect or variation of a solicitation or proposal from the exact requirements of the request, which does not affect the price, quality, and quantity or delivery schedule for the goods, services or construction being procured. The Chief of Procurement's decision shall be final.

W. Invoices/Payment

1. To Prime Contractor:

- a. Invoices for items ordered, delivered and accepted shall be submitted by the Contractor directly to HRSD per the "Method of Payment" section of the solicitation. All invoices shall show the HRSD contract number and or purchase order number; social security number (for individual contractors) or the federal employer identification number (for proprietorships, partnerships, and corporations).
- b. Any payment terms requiring payment in less than thirty (30) days will be regarded as requiring payment thirty (30) days after invoice or delivery, whichever occurs last. This shall not affect solicitations/proposals of discounts for payment in less than thirty (30) days.
- c. All goods or services provided under this contract shall be billed by the Contractor at the contract price.
- d. The following shall be deemed to be the date of payment: the date of postmark in all cases where payment is made by mail.

2. To Subcontractors:

- a. A Contractor awarded a contract under this solicitation is hereby obligated:
 - i. To pay the subcontractor(s) within seven (7) days of the Contractor's receipt of payment from HRSD for the proportionate share of the payment received for work performed by the subcontractor(s) under the contract; or
 - ii. To notify the HRSD Procurement Office and the subcontractor(s), in writing, of the Contractor's intention to withhold payment and the reason. Notification to be made within seven (7) days of the Contractor's receipt of payment from HRSD.
- b. The Contractor is obligated to pay the subcontractor(s) interest at the rate of one percent per month (unless otherwise provided under the terms of the contract) on all amounts owed by the Contractor that remain unpaid seven (7) days following receipt of payment from HRSD, except for amounts withheld as stated in section (2) above. The date of mailing of any payment by U.S. Mail is deemed to be payment to the addressee. These provisions apply to each sub-tier Contractor performing under the primary contract. A Contractor's obligation to pay an interest charge to a subcontractor may not be construed to be an obligation of HRSD.

X. Mandatory Use of HRSD Form and Terms and Conditions

Modification of or additions to any portion of the solicitation may be cause for rejection of the response; however, HRSD reserves the right to decide on a case by case basis, in its sole discretion, whether or not to reject a response as non-responsive.

Y. Minority Owned Businesses Subcontracting and Reporting

Where it is practical for any portion of the awarded contract to be subcontracted to other suppliers, the Contractor is encouraged to offer such business to minority businesses. Names of such firms may be available from the Procurement Officer. When such business has been subcontracted to these firms and upon completion of the contract, the Contractor agrees to furnish the Procurement Office the following information: name of firm, phone number, total dollar amount subcontracted and type of product/service provided.

Z. Non-Publicity

Neither the Supplier/Consultant, nor any of its employees or agents shall use HRSD's name, logo, or site photographs in any format for any personal or professional marketing or public relations material or social media use without prior review and approval from HRSD's Chief Communication Officer. These materials include, but are not limited to, advertisements, news releases, published articles, customer lists, advertorials or any other promotional purposes.

AA. Precedence of Terms

Paragraphs B-D, J, O-Q, T-U of these General Terms and Conditions shall apply in all instances. In the event there is a conflict between any of the other General Terms and Conditions and any Special Terms and Conditions in this solicitation, the Special Terms and Conditions shall apply.

AB. Qualifications of Bidders/Offerors

HRSD may make such reasonable investigations as deemed proper and necessary to determine the ability of the Bidder/Offeror to perform the services/furnish the goods and the Bidder/Offeror shall furnish to HRSD all such information and data for this purpose as may be requested. HRSD reserves the right to inspect Bidder's/Offeror's physical facilities prior to award to satisfy questions regarding the Bidder's/Offeror's capabilities. HRSD further reserves the right to reject any response if the evidence submitted by, or investigations of such Bidder/Offeror fails to satisfy HRSD that such Bidder/Offeror is properly qualified to carry out the obligations of the contract and to provide the services and/or furnish the goods contemplated therein.

AC. Taxes

Sales to HRSD are normally exempt from state sales tax. State sales and use tax certificates of exemption, Form ST-12, will be issued upon request. Deliveries against this contract shall be free of federal excise and transportation taxes. HRSD's excise tax exemption registration number is 10-546001749-001.

AD. Testing/Inspection

HRSD reserves the right to conduct any test/inspection it may deem advisable to assure goods and services conform to the specifications.

AE. Title VI Civil Rights Obligations

HRSD, in accordance with the provisions of Title VI of the Civil Rights Act of 1964, hereby notifies all Bidders/Offerors that it will affirmatively ensure that for any contract entered into pursuant to this solicitation, disadvantaged business enterprises will be afforded full and fair opportunity to submit a response to this solicitation and will not be discriminated against on the grounds of race, color, or national origin in consideration for an award.

During the performance of this contract, the contractor, for itself, its assignees, and successors in interest (hereinafter referred to as the "contractor") agrees that the contractor will comply with the Title VI List of Pertinent Nondiscrimination Acts and Authorities, as they may be amended from time to time, which are herein incorporated by reference and made a part of this contract. The contractor, with regard to the work performed by it during the contract, will not discriminate on the grounds of race, color, or national origin in the selection and retention of subcontractors, including procurements of materials and leases of equipment. The contractor will not participate directly or indirectly in the discrimination prohibited by the Nondiscrimination Acts and Authorities.

During the performance of this contract, the contractor agrees to comply with the following non-discrimination statutes and authorities; including but not limited to:

- Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d et seq., 78 stat. 252), (prohibits discrimination on the basis of race, color, national origin);
- Section 504 of the Rehabilitation Act of 1973, (29 U.S.C. § 794 et seq.), as amended, (prohibits discrimination on the basis of disability); and 49 CFR part 27;
- The Age Discrimination Act of 1975, as amended, (42 U.S.C. § 6101 et seq.), (prohibits discrimination on the basis of age);
- The Civil Rights Restoration Act of 1987, (PL 100-209), (Broadened the scope, coverage and applicability of Title VI of the Civil Rights Act of 1964, The Age Discrimination Act of 1975 and Section 504 of the Rehabilitation Act of 1973, by expanding the definition of the terms "programs or activities" to include all of the programs or activities of the Federal-aid recipients, sub-recipients and contractors, whether such programs or activities are Federally funded or not);
- Executive Order 12898, Federal Actions to Address Environmental Justice in Minority Populations and Low-Income Populations, which ensures non-discrimination against minority populations by discouraging programs, policies, and activities with disproportionately high and adverse human health or environmental effects on minority and low-income populations;
- Executive Order 13166, Improving Access to Services for Persons with Limited English Proficiency, and resulting agency guidance, national origin discrimination includes discrimination because of limited English proficiency (LEP). To ensure compliance with Title VI, you must take reasonable steps to ensure that LEP persons have meaningful access to your programs (70 Fed. Reg. at 74087 to 74100);
- Title IX of the Education Amendments of 1972, as amended, which prohibits you from discriminating because of sex in education programs or activities (20 U.S.C. 1681 et seq.).

AF. Withdrawal or Modification of Responses Prior to Due Date

Response may be withdrawn or modified by logging into HRSD's online Oracle ERP system prior to the time fixed for bid receipt. If you experience difficulties logging into your account, please contact the help desk at

erphelp@hrsd.com.

VI. SPECIAL TERMS AND CONDITIONS

A. Award of Contract

Awards are made to the lowest responsive and responsible Bidder. Evaluation will be based on net prices. Unit prices, extensions and grand total must be shown. In case of arithmetic errors, the unit price will govern. If cash discount for prompt payment is offered, it must be clearly shown in the space provided. HRSD reserves the right to reject any and all bids in whole or in part, to waive informality, and to delete items prior to making an award. HRSD reserves the right to make a separate award of each item, a group of items or all items, and to make an award either in whole or in part, whichever is deemed in the best interest HRSD.

B. Bid Acceptance Period

Any bid in response to this solicitation shall be valid for thirty (30) days. At the end of the thirty (30)-day period the bid may be withdrawn at the written request of the Bidder. If the bid is not withdrawn at that time it remains in effect until an award is made or the solicitation is canceled.

C. Bid Prices

Bid shall be in the form of a firm unit price for each item during the contract period. All pricing shall include all delivery charges and shipping terms shall be F.O.B. Destination, freight prepaid, (Bidder pays and bears all freight charges and owns goods in transit). Any other special charges, fees, or special taxes shall be shown separate from the bid price.

D. Confidentiality

The contractor assures that information and data obtained as to personal facts and circumstances related to employees will be collected and held confidential, during and following the term of this agreement, and will not be divulged without the employee's and HRSD's written consent. Any information to be disclosed, except to HRSD, must be in summary, statistical, or other form which does not identify particular individuals. Contractors and their employees working on this project may be required to sign a confidentiality statement.

E. Contractor Experience

The Company submitting the bid/offer must have a minimum of three (3) year's recent experience for which their company has experience in servicing same or similar types of accounts and providing similar type of goods/services requested in this solicitation.

F. Contractor Registration

If a contract for construction, removal, repair or improvement of a building or other real property is for \$120,000 or more, or if the total value of all such contracts undertaken by bidder within any 12-month period is \$750,000 or more, the bidder is required under Title 54.1-1100, *Code of Virginia* (1950), as amended, to be licensed by the State Board of Contractors a "CLASS A CONTRACTOR."

If such a contract is for \$10,000 or more but less than \$120,000, or if the total value of all such contracts undertaken by bidder within any 12-month period is \$150,000 or more, but less than \$750,000 or more, the bidder is required to be licensed as a "CLASS B CONTRACTOR."

If such a contract is over \$1,000 but less than \$10,000, or if the contractor does less than \$150,000 in business in a 12-month period, the bidder is required to be licensed as a "CLASS C CONTRACTOR."

HRSD requires a master tradesmen license as a condition of licensure including but not limited to electrical, plumbing and heating, ventilation and air conditioning contractors. The bidder shall include their applicable Contractor License Number and Type with their online bid submittal. If the bidder shall fail to provide this information with their online bid submittal and shall fail to promptly provide said contractor license number to HRSD in writing when requested to do so before or after the opening of bids, the contractor shall be deemed to be in violation of § 54.1-1115 of the *Code of Virginia* (1950), as amended, and their bid will not be considered.

G. Contractor's Title to Materials

No materials or supplies for the work shall be purchased by the Contractor or by any subcontractor subject to any chattel mortgage or under a conditional sales or other agreement by which an interest is retained by the seller. The Contractor warrants that he has clear title to all materials and supplies for which he invoices for payment.

H. Definitions

The term "HRSD" as used herein, shall mean the Hampton Roads Sanitation District.

The term "Contractor" means the person, firm or corporation named as such in the contract and includes the plural number and the feminine gender when such are named in the contract as the Contractor.

The term "Subcontractor" means only those having a direct contract with the Contractor and it includes one who furnishes material work to a special design but does not include one who merely furnishes material not so worked.

I. Delivery and Storage

It shall be the responsibility of the Contractor to make all arrangements for delivery, unloading, receiving and storing materials in the building(s) during installation. HRSD will not assume any responsibility for receiving these shipments. Contractor shall check with HRSD and make necessary arrangements for security and storage space in the building(s) during installation.

J. Errors in Bids

A bidder may withdraw his bid from consideration if the price bid was substantially lower than the other bids due solely to a mistake therein, provided the bid was submitted in good faith, and the mistake was a clerical mistake as opposed to a judgment mistake, and was actually due to an unintentional arithmetic error or an unintentional omission of a quantity of work, labor or material made directly in the compilation of a bid, which unintentional arithmetic error or unintentional omission can be clearly shown by objective evidence drawn from inspection of original work papers, documents and materials used in the preparation of the bid sought to be withdrawn.

K. Final Inspection

At the conclusion of the work, the Contractor shall demonstrate to the authorized HRSD representative that the work is fully operational and in compliance with contract specifications and codes. Any deficiencies shall be promptly and permanently corrected by the Contractor at the Contractor's expense prior to final acceptance of the work.

L. Hazardous Chemical Communication Program

HRSD is required in accordance with 29 CFR 1910.119 to inform HRSD and Contractor personnel that work centers within HRSD have hazardous chemicals on site. HRSD and Contractor personnel may be exposed to these hazardous chemicals while working at HRSD. A written Hazard Communication Program has been developed to inform personnel of the specific hazardous chemicals at the work center and the related safety information including protective measures, special precautions and emergency procedures to be observed. The Hazard Communication Program, including a complete file of Safety Data Sheets for each hazardous chemical, is available at each work center and may be obtained upon request. The Contractor is responsible for communicating the information contained in the Safety Data Sheets to their personnel working at HRSD work centers.

M. Insurance

By submitting an offer under this solicitation, the Offeror certifies that if awarded the contract, it will have the following insurance coverage at the time the contract is awarded. If any subcontractors are involved, the subcontractor will have general liability, professional liability and pollution liability (if applicable), and workers' compensation insurance in accordance with the Code of Virginia as further outlined below. A current copy of Offeror's Certificate of Insurance must be provided upon request and addressed to Hampton Roads Sanitation District, 1434 Air Rail Ave., Virginia Beach, VA 23455. Hampton Roads Sanitation District must be named as an additional insured and so endorsed on the policy.

The Offeror further certifies that the Contractor and any subcontractors will maintain these insurance coverages during the entire term of the contract and that all insurance coverage will be provided by insurance companies authorized to sell insurance in Virginia by the Virginia State Corporation Commission.

Insurance Coverage and Limits:

Workers' Compensation - Statutory requirements and benefits. A waiver of subrogation in favor of HRSD will be included.

Employer's Liability – Required limits of \$100,000/\$500,000/\$100,000.

Commercial General Liability - \$1,000,000 per occurrence and \$2,000,000 in the aggregate. Commercial General Liability is to include bodily injury and property damage, contractual liability, personal injury and advertising injury, products and completed operations coverage. HRSD will be an additional insured for both ongoing and completed operations, with a waiver of subrogation included. Coverage will be primary, with any insurance carried by HRSD being non-contributory.

Automobile Liability – Limits of \$1,000,000 per Occurrence, with HRSD as an additional insured. Requirements mandated by the Motor Carrier Act of 1980.

Professional Liability – Limits of \$1,000,000 per claim required for vendors, suppliers or contractors providing consulting or professional services.

Pollution Liability – Limits of \$1,000,000 per claim required for contractors or vendors working with hazardous materials.

N. Laws and Regulations

The Contractor shall comply with all laws, ordinances, rules, regulations, and lawful orders of any public authority bearing on the performance of the work and shall give all notices required thereby. The Contractor shall assure that all Subcontractors and tradesmen who perform work on the project are properly licensed by the Department of Professional and Occupational Regulation as required by the *Code of Virginia* and by applicable regulations.

This contract and all other contracts and subcontracts are subject to the provisions of the *Code of Virginia* relating to labor unions and the "right to work." The Contractor and its subcontractors, whether residents or nonresidents of the Commonwealth, who perform any work related to the project shall comply with all of the said provisions.

The provisions of all rules and regulations governing safety as adopted by the Safety Codes Commission of the Commonwealth of Virginia and as issued by the Department of Labor and Industry under the *Code of Virginia* shall apply to all work under this contract.

The Contractor, if not licensed as an asbestos abatement contractor or a RFS contractor in accordance with the *Code of Virginia*, shall have all asbestos related work performed by subcontractors who are duly licensed as asbestos contractors or RFS contractors as appropriate for the work required.

The Contractor is neither required nor prohibited from entering into or adhering to agreements with one or more labor organizations, or otherwise discriminating against subcontractors for becoming or refusing to become, or remaining signatories to or otherwise adhering to, agreements with one or more labor organizations. This section does not prohibit contractors or subcontractors from voluntarily entering into agreements with one or more labor organizations. Both the agency and contractor are entitled to injunctive relief to prevent any violation of this section.

This section does not apply to any public-private agreement for any construction in which the private body, as a condition of its investment or partnership with HRSD, requires that the private body have the right to control its labor relations policy and perform all work associated with such investment or partnership in compliance with all collective bargaining agreements to which the private party is a signatory and is thus legally bound with its own employees and the employees of its contractors and subcontractors in any manner permitted by the National Labor Relations Act, 29 U.S.C. § 151 et seq., or the Railway Labor Act, 45 U.S.C. § 151 et seq.

This section does not prohibit an employer or any other person covered by the National Labor Relations Act or the Railway Labor Act from entering into agreements or engaging in any other activity protected by law.

This section shall not be interpreted to interfere with the labor relations of persons covered by the National Labor Relations Act or the Railway Labor Act.

O. Maintenance Manuals

The Contractor shall provide with each piece of equipment an operations and maintenance manual with wiring diagrams, parts list, and a copy of all warranties.

P. Negotiation with the Lowest Bidder

Unless all bids are canceled or rejected, HRSD reserves the right granted by the Code of Virginia to negotiate with the lowest responsive, responsible Bidder to obtain a contract price within the funds available to HRSD whenever such low bid exceeds HRSD's available funds. For the purpose of determining when such negotiations may take place, the term "available funds" shall mean those funds which were budgeted by HRSD for this contract prior to the issuance of the written Invitation for Bid. Negotiations with the low Bidder may include both modifications of the bid price and the Scope of Work/Specification to be performed. HRSD shall initiate such negotiations by written notice to the lowest responsive, responsible Bidder that its bid exceeds the available funds and HRSD wishes to negotiate a lower contract price. The times, places, and manner of negotiation shall be agreed to by HRSD and the lowest responsive, responsible Bidder.

Q. Preparation and Submission of Bids

Bids must be submitted using the correct supplier record in HRSD's online Oracle ERP system. If the full business address of the Bidder is incorrect the Bidder should update that information prior to submitting a bid. The online submission must be submitted by an authorized representative. Bids by partnerships must furnish the full name of all partners and must be submitted in the partnership name by one of the members of the partnership or any authorized representative. Bids by corporations must be submitted with the legal name of the corporation

and submitted by a person authorized to bind it in the matter. When requested by HRSD, satisfactory evidence of the authority of the officer signing in behalf of the corporation shall be furnished.

R. Prime Contractor Responsibilities

The Contractor shall be responsible for completely supervising and directing the work under this contract and all subcontractors that he may utilize, using his best skill and attention. Subcontractors who perform work under this contract shall be responsible to the prime Contractor. The Contractor agrees that he is fully responsible for the acts and omissions of his subcontractors and of persons employed by them as he is for the acts and omissions of his own employees.

S. Protection of Persons and Property

The Contractor expressly undertakes, both directly and through its Subcontractors, to take every precaution at all times for the protection of persons and property, including HRSD's employees and property and its own.

The successful Contractor must attend a twenty-minute safety orientation program prior to beginning any work on HRSD property. Please contact HRSD's Safety Division at (757) 460-7061 to schedule an appointment.

The Contractor shall be responsible for initiating, maintaining and supervising all safety precautions and programs in connection with the work.

The Contractor shall continuously maintain adequate protection of all work from damage and shall protect HRSD's property from injury or loss arising in connection with this contract. The Contractor shall make good any such damage, injury or loss, except such as may be directly due to errors in the Contract Documents or caused by agents or employees of HRSD. The Contractor shall adequately protect adjacent property as provided by law and the Contract Documents, and shall provide and maintain all passageways, guard fences, lights and facilities for protection required by public authority, local conditions, or any of the Contract Documents.

T. References

The Company submitting the bid must submit a minimum of four (4) recent references with their bid. References furnished must be for similar type of goods/services requested in this solicitation for which their company has provided the goods/services.

U. Service Information

The Bidder/Offeror shall clearly and specifically identify the services being bid/offered and enclose a complete and comprehensive overview of services with the bid/proposal to enable HRSD to determine if the services bid/offered meet the requirements of the solicitation. Failure to do so may cause the bid/proposal to be considered non-responsive. In the event the services bid/offered are determined not in accordance with HRSD requirements, Bidder/Offeror may be evaluated as non-responsive.

V. Silence of Specifications

The apparent silence of these specifications and any supplemental specifications as to any detail or the omission from the specifications of a detailed description concerning any point shall be regarded as meaning that only the best commercial practices are to prevail and correct type, size and design are to be used. All interpretations of these specifications shall be made on the basis of this statement.

W. Subcontracts

No portion of the work shall be subcontracted without prior written consent of the Procurement Office. In the event that the Contractor desires to subcontract some part of the work specified herein, the Contractor shall furnish the Procurement Office the names, qualifications and experience of their proposed subcontractors. The Contractor shall, however, remain fully liable and responsible for the work to be done by its subcontractors(s) and shall assure compliance with all requirements of the contract. Nothing contained in the agreement between the Contractor and their proposed subcontractor shall create any contractual relationship between the Subcontractor and HRSD.

X. Superintendence by Contractor

The Contractor shall be responsible for all means, methods, techniques, sequences and procedures and for coordinating all portions of the work under the Contract except where otherwise specified in the Contract Documents.

The Contractor shall, at all times, enforce strict discipline and good order among the workers on the project, and shall not employ on the work any unfit person or anyone not skilled in the work assigned to him/her.

Y. Transportation Worker Identity Credentials and Virginia Port Authority Requirements

MANDATORY REQUIREMENT for access to HRSD Army Base Treatment Plant ONLY. Successful Bidder/Offeree will be required to obtain Transportation Worker Identity Credentials (TWIC) and Norfolk International Terminals (NIT) cards prior to the start of work for all employees, subcontractors and suppliers. HRSD will not delay the award of a contract or start of a project for a vendor to obtain their TWIC and NIT cards. HRSD may hold this requirement as an award factor. If your company already has TWIC and NIT cards, please provide a copy with your online response to HRSD's solicitation. The Army Base Treatment Plant will not arrange for Visitor Passes or provide escorts for any employees, subcontractors and suppliers.

Procedures, documentation and fees required to obtain the TWIC card can be found at <http://www.tsa.gov/twic>. Procedures, documentation and fees required to obtain the NIT card can be found by contacting the Virginia Port Authority Police Department at (757) 440-6802. Prior to contract award, successful Bidder/Offeree will be contacted by HRSD for completion of a Company Registration Form to complete the process for obtaining an NIT card.

Z. Use of Contract by Other Public Bodies

Extension of Contract -Bidders/Offerors are advised that all awarded contracts will be extended, with the authorization of the Bidder/Offeror, to public bodies to permit their ordering of equipment, supplies and services at the prices and terms of the resulting contract. If any other public body decides to use the final contract, the Contractor(s) must deal directly with that public body concerning the placement of orders, issuance of the purchase orders, contractual disputes, invoicing and payment. HRSD acts only as the "Contracting Agent" for these public bodies. Failure to extend a contract to any public body will have no effect on consideration of your bid/offer.

The awarded supplier shall be responsible for notifying the public bodies of the availability of the contract(s).

Each participating public body has the option of executing a separate contract with the awardee. Contracts entered into with them may contain general terms and conditions unique to those public bodies. If, when preparing such a contract, the general terms and conditions of a public body are unacceptable to the awardee, the awardee may withdraw its extension of the award to that public body.

HRSD shall not be held liable for any costs or damages incurred by another public body as a result of any award extended to that public body by the awardee.

AA. Use of HRSD Facilities

Contractor shall be responsible for providing rest room and other facilities for their employees. The Contractor's employees shall not be permitted to use HRSD work center facilities.

AB. Use of Premises and Removal of Debris

The Contractor expressly undertakes, either directly or through its Subcontractor:

To perform this Contract in such a manner as not to interrupt or interfere with the operation of any existing activity on the premises or at the location of the work;

To store its apparatus, materials, supplies, and equipment in such an orderly fashion at the site of the work as will not unduly interfere with the progress of its work or the work of HRSD or any other Contractor; and

To place upon work or any part thereof only such loads as are consistent with the safety of that portion of work.

To effect all cutting, filling or patching of its work required to make the same to conform to the plans and specifications, and except with the consent of HRSD, not to cut or otherwise alter the work of any other Contractor. The Contractor shall not damage or endanger any portion of the work by cutting, patching or otherwise altering any work, or by workmanlike appearance.

To clean up frequently all refuse, rubbish, scrap materials and debris caused by its operation, to the end that at all times the site of the work shall present a neat, orderly and workmanlike appearance.

AC. Work Hours

Contractor shall perform all work specified during HRSD's normal business hours. These hours are defined as Monday through Friday 6:30 am to 3:00 pm excluding HRSD holidays. If Contractor desires to perform any work outside these hours, the Contractor must receive prior written authorization from HRSD project manager.

AD. Work Schedule

Bidder shall be required to submit a general work schedule summary listing the stages of work and completion times for work to be performed. A detailed work schedule shall be submitted by the successful bidder.

AE. Work Site Damages

Any damage to existing utilities, finished surfaces, or equipment, including HRSD, employee or other vehicles on site, resulting from the performance of this contract shall be repaired to HRSD's satisfaction at the Contractor's expense.

VII. METHOD OF PAYMENT

A. Method of Payment

The Bidder/Offeror should provide a Schedule of Values to HRSD with their response. The Schedule of Values shall be reviewed by HRSD and shall form the basis for payment to the Contractor, upon approval by HRSD.

The Schedule of Values should provide for progress payments in installments based upon an estimated percentage of completion and that the Contractor shall be paid at least ninety-five percent of the earned sum when payment is due, with no more than five percent being retained to ensure faithful performance of the contract. All amounts withheld may be included in the final payment. Any subcontract for this project that provides for similar progress payments shall be subject to the provisions of this section.

Final payment shall be authorized by HRSD upon satisfactory completion and acceptance of all work in accordance with HRSD's Contract and receipt of required warranty paperwork. Progress payments shall not relieve the Contractor of performance obligations under this contract.

Payments will be made within 30 days after submission of invoice, delivery, or completion of service, whichever occurs last. Payment is made by invoices with reference to the purchase order and directed to the address shown on the purchase order contract.

Invoices for items ordered and/or services received, delivered and accepted shall be submitted by the Contractor directly through HRSD's ERP system as a work confirmation. A work confirmation is an electronic method for submitting your request for payment through our system which will enable various personnel to review and approve your payment request. If you need help submitting a work confirmation please review the instructions

provided on our website at www.hrsd.com located on the Procurement page under "Doing Business with Us" under the "How to Guides".

VIII. PRICING

A. Pricing

Bid shall be in the form of a firm fixed total lump sum price for each line item during the contract. The lump sum price must include all shipping charges, F.O.B. destination, freight prepaid, including but not limited to, charges for insurance, special handling charges or taxes that may be imposed in fulfilling the terms of this contract. All pricing must be submitted online per line item through HRSD's online Oracle ERP System.